

Secretary of State Audit Report

Kate Brown, Secretary of State

Gary Blackmer, Director, Audits Division



Child Welfare Program: Strategies to Help Caseworkers Reunite More Families

Summary

From October 2009 through September 2010, the Department of Human Services' Child Welfare Program (Child Welfare) removed 4,736 children who were 19 years old or younger from their homes to ensure their safety. Reasons for removal were varied and included parental neglect, substance abuse, and physical and sexual abuse. These children were placed in foster care while caseworkers helped parents or primary caregivers resolve the safety issues. Through in-home support, education, and treatment, the program helps families provide a safe home for their children. The program operates out of 16 district offices and associated branch offices across the state, with a central administration office in Salem.

Returning children to their parents or primary caregivers whenever possible is the primary Federal and State goal. Studies have supported this goal, recognizing the benefits of family preservation. However, circumstances surrounding parents such as substance abuse and incarceration can prevent children from returning home.

The purpose of our audit was to identify challenges to returning children home and improvements Child Welfare management can make to these efforts. We analyzed data on children who spent at least one day in foster care during the period October 2009 through September 2010, and reviewed case file information for a selection of children.

There were approximately 13,000 children in foster care during the period. Child Welfare returned these children home at a rate of 29%, which is better than the national average of 22%. District office return rates ranged from 23% to 39%.

Families in the child welfare system often face multiple barriers to providing a safe home. In Oregon, the most frequent conditions associated with removing a child were physical abuse, and parental drug and alcohol abuse. Helping families eliminate these barriers and

create a safe home is complicated work. Caseworkers help parents navigate treatment services, monitor child safety, and evaluate the family's progress towards reunification. Although they have limited control over the parents' actions, caseworkers are held responsible for case outcomes and are subjected to public scrutiny if something goes wrong.

While reviewing district practices, we found caseworkers struggle with high workload. In all of the districts we visited, Child Welfare caseworkers and other stakeholders noted the amount and quality of parent-child visits was rarely adequate. In addition, parents often have limited access to mental health, substance abuse, and housing services that would allow their children to return home.

Though further evaluation is needed to prove their effectiveness, we observed several district practices that may benefit other districts. For example, the Marion County district office uses a specialized training unit to offer peer mentoring and extended training. Klamath County has a visitation center located away from the child welfare office, which can provide a less stressful environment for parent-child visits. The visitation site also has onsite full-service drug and alcohol treatment and a visitation center coordinator who serves as a liaison between drug and alcohol treatment providers and caseworkers. This streamlines services to parents and eases communication between substance abuse counselors and Child Welfare caseworkers. Districts may also be able to improve practices by setting clear priorities and using staff performance evaluations to increase effectiveness and efficiency.

Program service delivery takes place at the local level and is monitored by district and branch managers. However, unlike the Protective Services, Foster Care, and Adoptions programs, there is no central office program manager implementing policies related to returning children home.

Child Welfare policies and procedures are established by management in Salem with the expectation that districts will ensure they are carried out, but these detailed expectations exceed the capacity of district staffing and other resources. Despite efforts over the last two years, central management has been unable to set priorities among tasks. Instead, expectations of caseworkers continue to grow as a result of new policies, Federal requirements, and new laws.

We recommend that Child Welfare district offices and branches share locally-developed practices or systems that support caseworkers, create efficiencies, and develop caseworker skills.

We recommend the Department of Human Services Child Welfare Program:

- Evaluate and set priorities among the expected caseworker duties contained in their Child Welfare procedures manual.

- Routinely gather and share potential best practices among districts.
- Consider assigning a program manager dedicated to returning children home at the central office to provide better direction and support to enhance caseworker practices. The manager's responsibilities could also include working with other Child Welfare managers to evaluate and set priorities among current return home practices and ensure best practices are distributed among the districts.
- Continue with efforts to implement a policy of annual employee performance evaluations to encourage professional development, improve working environments, and better achieve the program's mission.
- Evaluate whether support staff could help alleviate caseworkers' workload burden by providing more assistance on administrative tasks. This should include determining if support staff need additional, but adequately controlled, access to the program's OR-Kid system.

We recommend federal reconsideration of current funding practices to determine whether alignment with the federal goal of returning children to their families would produce better outcomes.

Agency Response

The agency response is attached at the end of the report.

Child Welfare Charged With Providing Safe Homes For Oregon's Abused And Neglected Children

The Department of Human Services' Child Welfare Program (Child Welfare) is responsible for providing safe and permanent homes for Oregon's abused and neglected children. Oregon law requires Child Welfare and law enforcement agencies to investigate reports of alleged child abuse and neglect, and use certified substitute care providers when necessary to protect children. Additionally, Oregon law authorizes Child Welfare to take action, without evidence of actual abuse or neglect, when there is a substantial risk of harm to the child's health or welfare.

Child Welfare works with families to provide a safe home for their children. The program uses in-home support, education, and treatment to accomplish this. It also works with many other programs such as service providers, citizen review boards and court appointed special advocates. When children cannot be returned home safely from foster care, the secondary goal is to find permanent alternative families for children through adoption or other efforts.

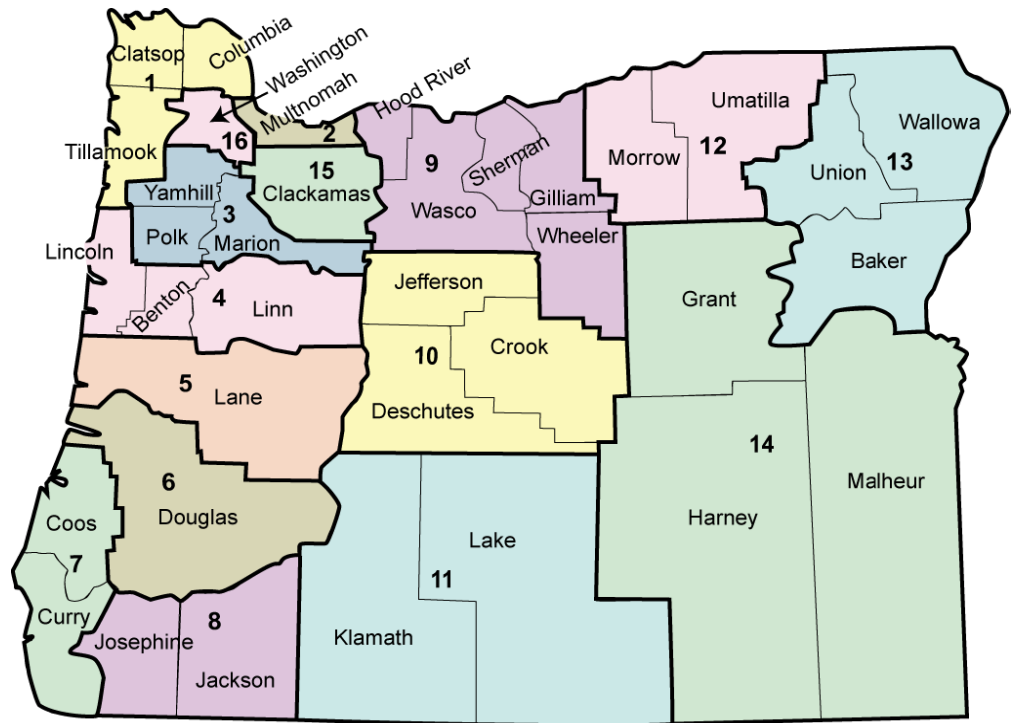
Oregon Safety Model places child safety at the forefront

Child Welfare introduced a new approach, the Oregon Safety Model, in 2007. The model focuses on child safety as a primary concern, but balances that priority with respect for family integrity. Under the Oregon Safety Model, caseworkers assess child safety and the parents' ability to protect their children. The model outlines step-by-step procedures for receiving and investigating abuse and neglect accusations, removing children from homes, providing specific interventions for parents to address removal reasons, and identifying appropriate placement options for children who are unable to return home.

Child Welfare efforts administered locally

While Child Welfare policies and procedures are established by management in Salem, personnel in 16 districts statewide carry them out. Districts cover one or more counties, depending on the population and clients served, and generally include multiple branches. These branch offices have managers, caseworkers, and other staff who serve the children and families within their geographic areas. District managers hire and manage staff and are responsible for maintaining a positive presence in the community.

Figure 1: Oregon's Child Welfare Districts



Child Welfare's Protective Services caseworkers investigate abuse and neglect claims

Protective Services caseworkers across the state investigate allegations of child abuse or neglect. They also prepare plans to ensure children are safe and, when appropriate, help families remove safety barriers so children can return home. Protective Services and law enforcement agencies have a shared legal responsibility for receiving and responding to child abuse and neglect reports. If a child has been abused or neglected, Protective Services decide, whether the child can safely remain in the home. If possible, extended families can help to provide child safety within the home.

During our review period, October 2009 through September 2010, Child Welfare received approximately 72,000 reports of suspected child abuse or neglect. Of those, about 29,000 were referred for investigation and 7,300 reports were substantiated. Workload has increased substantially with reports of abuse and neglect increasing 20% and investigations increasing 13% over the last five years.

Figure 2: Abuse or Neglect Reports over Last Five Federal Fiscal Years

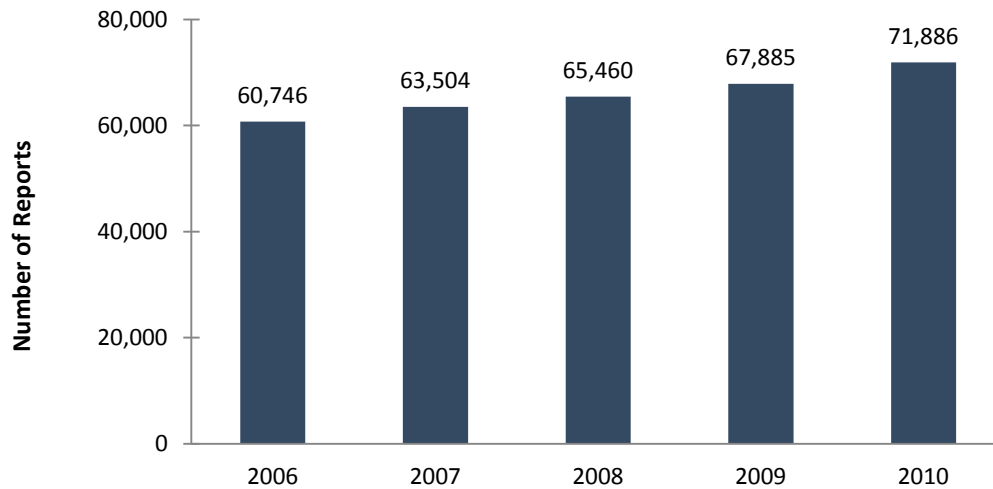
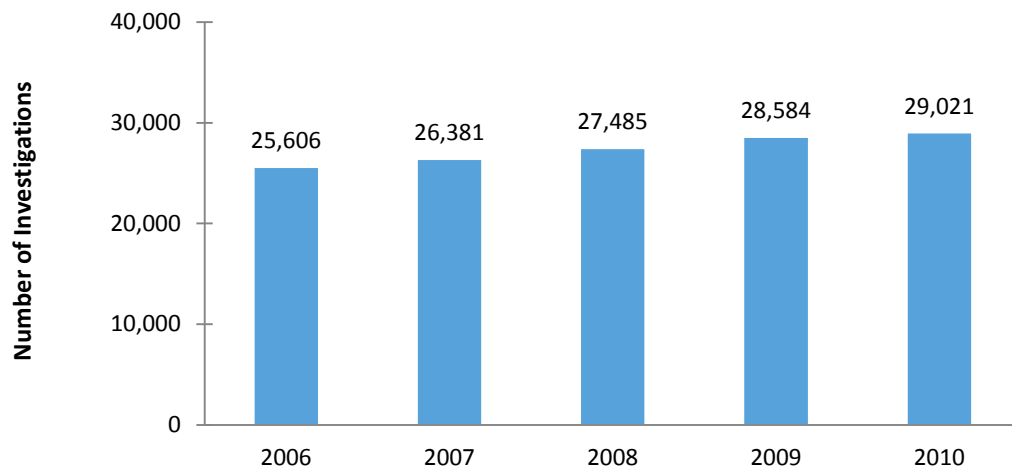


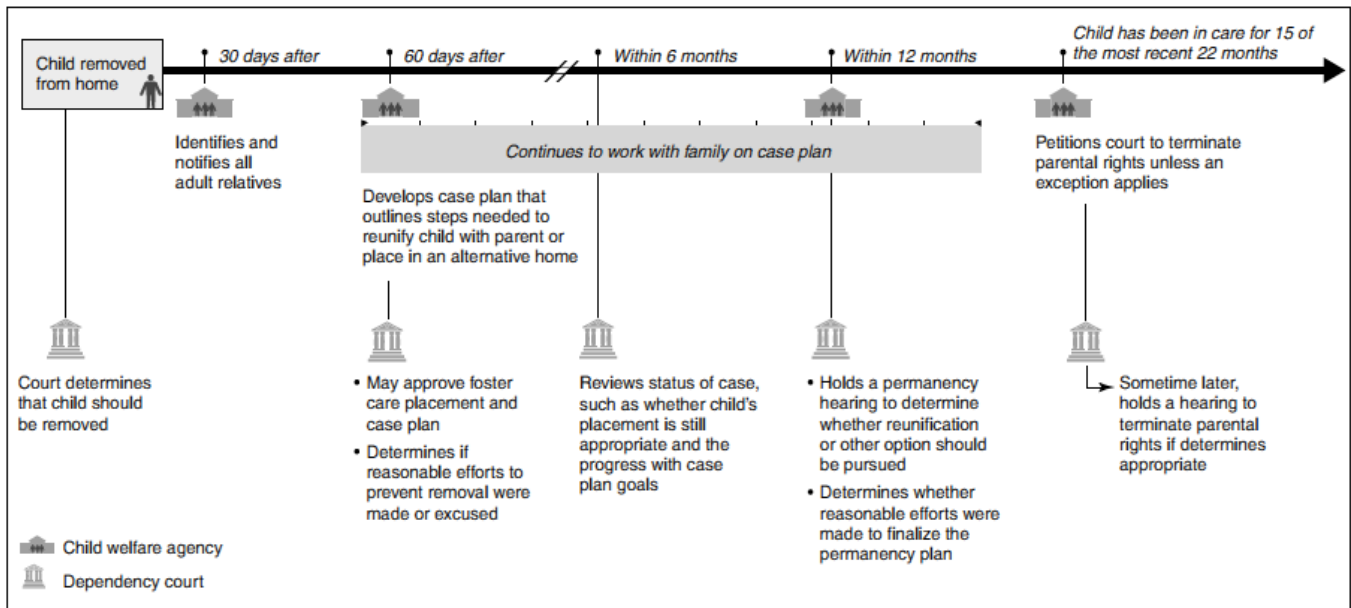
Figure 3: Abuse or Neglect Investigations over Last Five Federal Fiscal Years



Court Determinations And Monitoring

County courts play an important role in child welfare. Most importantly, judges in the courts determine whether children should be placed in Child Welfare's custody and decide if they can safely return home. In addition, the courts monitor Child Welfare and parent progress, and children's welfare while they are under the court's jurisdiction.

Figure 4: Court Process Diagram



Sources: GAO analysis of federal laws and other information sources.

Court approves or denies children's removal from home

Within 24 business hours after a child's removal from home, a Child Welfare worker must appear in County Court to demonstrate why the child was removed and to request temporary custody of the child. If granted, Child Welfare caseworkers, parents, and attorneys have 60 days to negotiate and document how the abuse or neglect will be defined in legal documents, what parents must do for their children to return and the services that Child Welfare will provide to parents. The court can extend the 60-day timeline if necessary. If parents refuse to admit to any abuse or neglect, the case goes to trial. However, in most cases Child Welfare and the parents come to an agreement, and Child Welfare maintains legal custody of the child without a trial.

Courts monitor parent and caseworker efforts

After Child Welfare obtains legal custody of a child, the court holds periodic review hearings to monitor case progress and caseworkers' efforts to help children return home. The frequency of review hearings differs among counties, but all cases are reviewed at least every six months. Review hearings are usually scheduled in advance, but the caseworker, judge, or attorneys can request hearings as needed.

If a child is still in foster care after 12 months, the court holds a permanency hearing to determine if it is appropriate to continue efforts to return the child to his or her parents or original caregivers and if Child Welfare has made reasonable efforts to help the child return home. If it appears the parents or caregivers will not be able to provide a safe home,

the court may order Child Welfare to pursue an alternate plan for the child, such as adoption, guardianship, or permanent foster care. If parents are actively working towards providing a safe home, the court can grant them more time to address the safety threats.

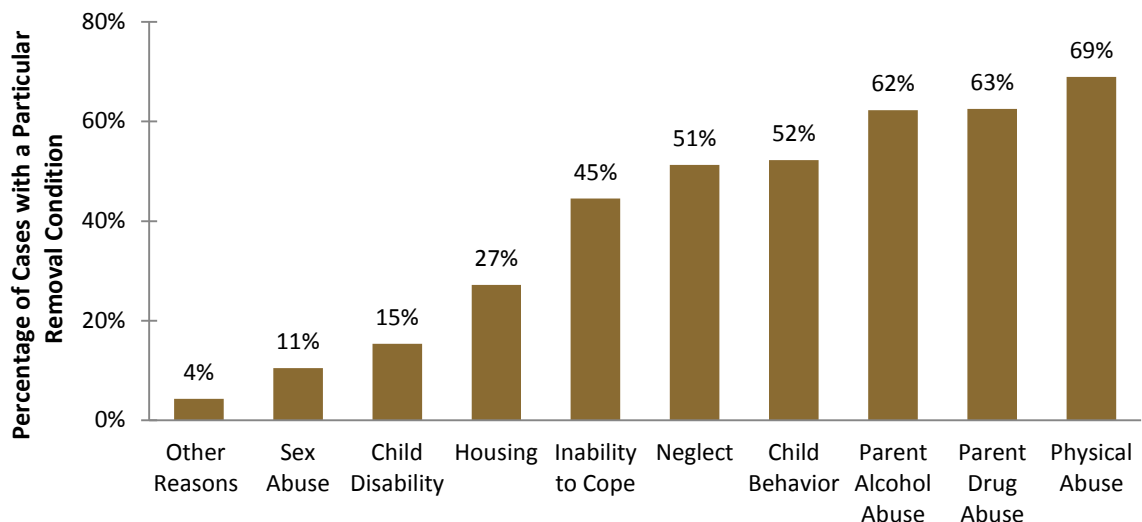
Although caseworkers provide updates and make recommendations, only the court has power to grant legal custody back to a parent or to move towards permanently terminating parental rights.

Children Placed In Foster Care

Once removed, children are placed in foster care as a substitute for parental care. Foster care can include placement with a relative, with someone unrelated to the child, in a group home, or in an institution. While Child Welfare ensures the foster home will be safe prior to placing a child there, placement can still be difficult for a child, who often must adjust to a family, location, and culture that differs from their original home.

We analyzed data for more than 13,000 children in Oregon who spent at least one day in foster care between October 1, 2009 and September 30, 2010. About 4,700 of these children entered or re-entered foster care during this period. Ages for these children ranged from newborn to 19 years. Though removals can be associated with multiple conditions, our analysis of the approximate 13,000 children in foster care found the most common reported conditions were physical abuse, parent drug and alcohol abuse, neglect, and child behavior.

Figure 5: Children in Foster Care by Conditions Associated with Removal



We also noted a wide variation among the children with regard to race and age. The following figures depict demographics for the approximate 13,000 children included in our analysis.

Figure 6: Children in Foster Care by Race

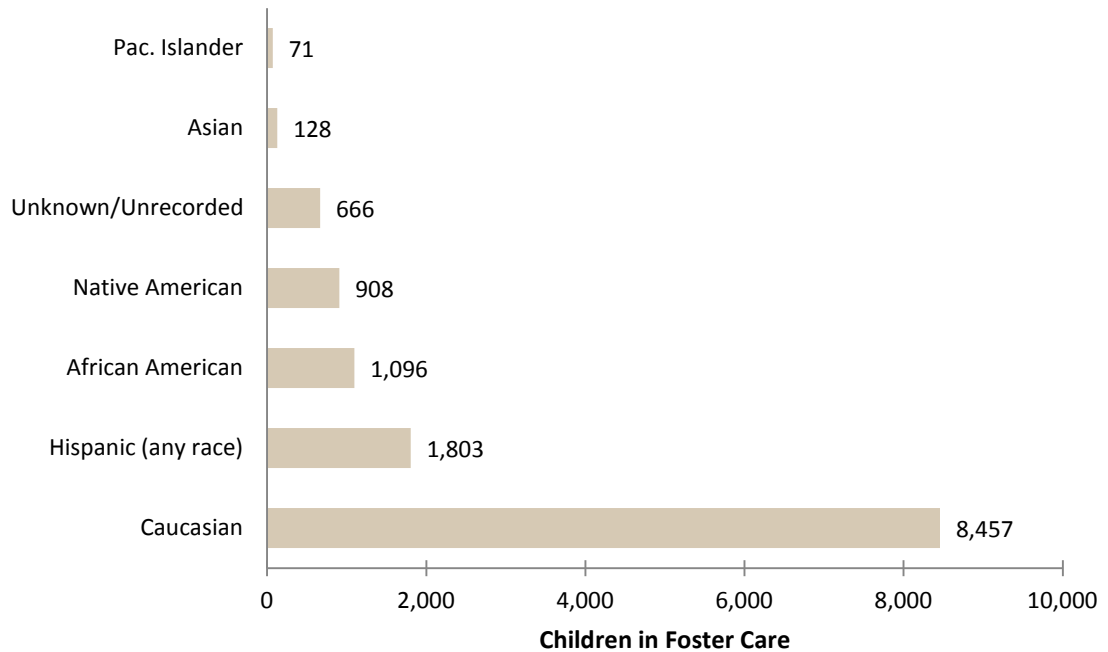
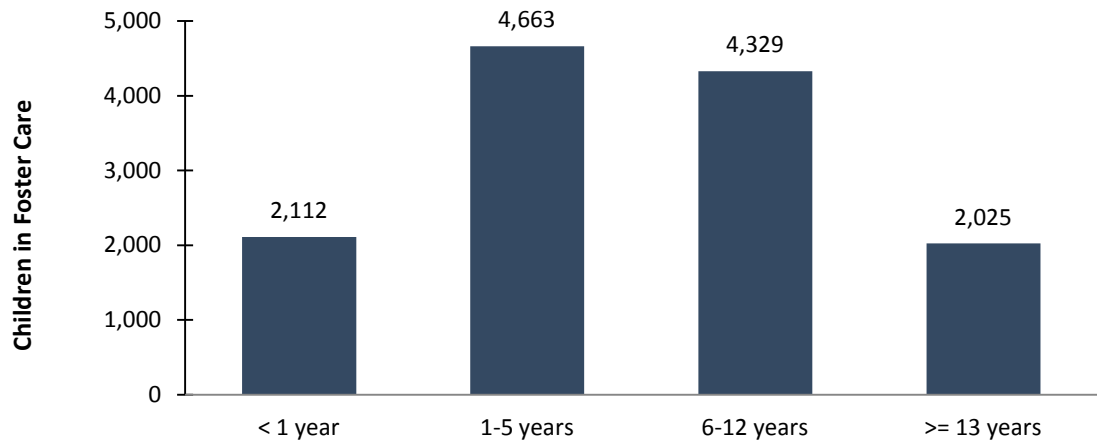
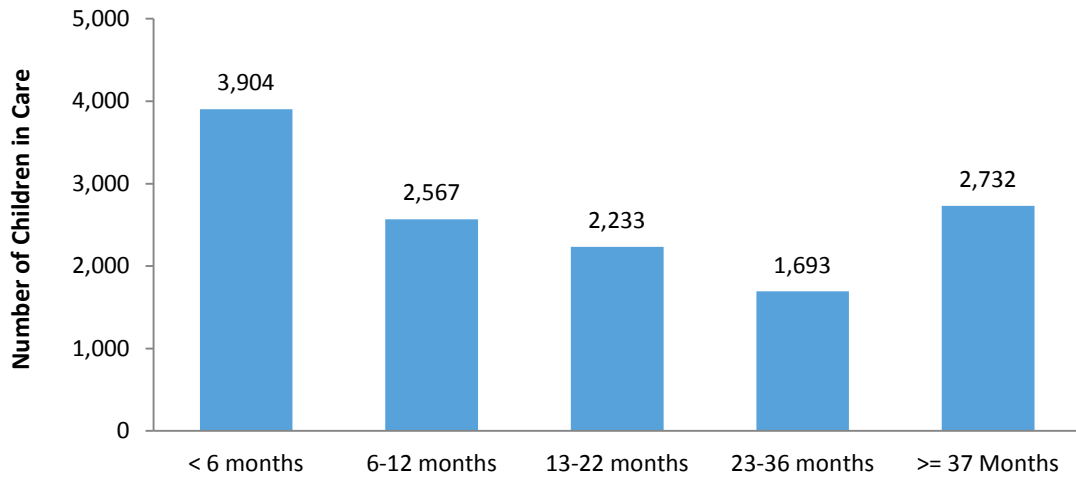


Figure 7: Children in Foster Care by Age at Removal



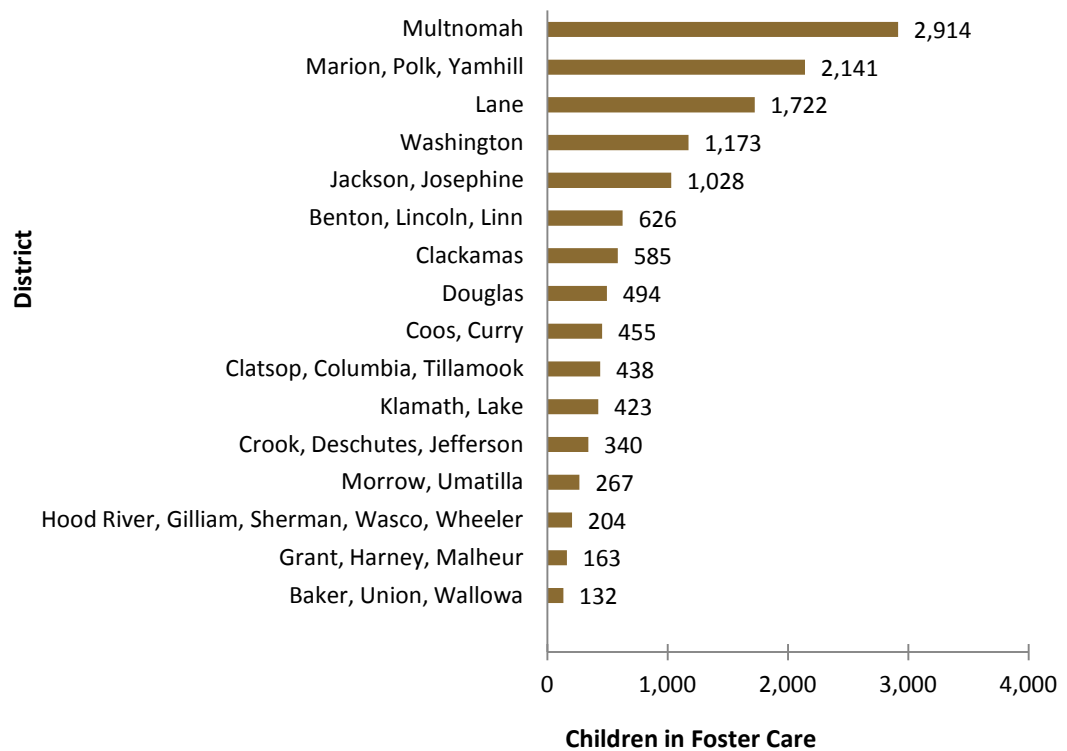
Federal and state law emphasizes returning children home within a year of their removal. This is consistent with child welfare literature, which suggests children are less likely to return home after 12 months in foster care. Caseworkers help parents remove safety barriers that prevent children from returning home before that point, but must begin planning for other living arrangements if it appears the child will be unable to return home before the 12-month mark.

Figure 8: Children in Foster Care: Length in Care



A significant portion of children in foster care were located in Oregon's more populated and urban districts. For example, approximately 50% of all children in foster care during our review period resided in one of the three districts that included Multnomah, Marion, and Lane Counties. On the other hand, only 12% of the children in foster care resided in districts that are east of the Cascades Mountain Range.

Figure 9: Children in Foster Care by District



For Children In Foster Care, Reunification With Parents Remains The Primary Goal

State and federal law requires reunification to be the primary goal, with exceptions for certain circumstances. This goal aligns with research that links family preservation to positive child outcomes. The federal government evaluates states on several performance measures, some of which are directly related to reunification success. In Oregon, caseworkers are actively pursuing reunification for nearly 62% of the approximate 13,000 children in foster care from October 1, 2009 through September 30, 2010.

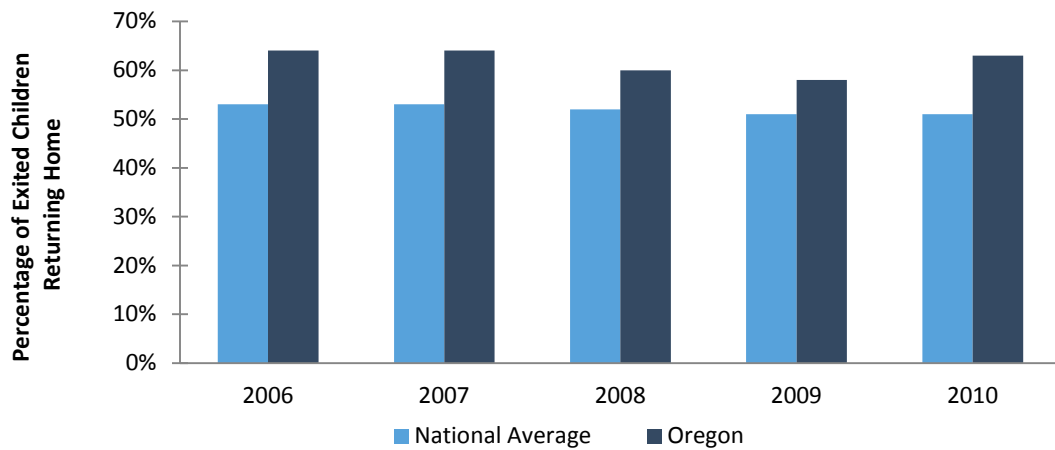
Though reunification is the goal, not all children can return home. Circumstances such as sexual or physical abuse can be so severe that reunification is not an appropriate outcome for the child. In other cases, parent circumstances such as incarceration, mental illness and substance abuse can prevent children from returning home. In these cases, Child Welfare considers other permanent placement options such as adoption.

Failed reunifications can negatively impact children. Children who are found to experience further abuse or neglect return to Child Welfare's custody. For example, in one case we reviewed, a child was originally removed due to neglect but was returned home after spending three years in foster care. The child's second removal came more than 12 years later, this time due to parental neglect and drug abuse. The child never returned home and is close to aging out of the foster care system. In another case, a child was removed from home because of parental neglect and incarceration but was returned home two years later. About seven months after returning home, Child Welfare removed the child a second time after the parent was found to have neglected the child.

Oregon Has Had Success Returning Children Home

According to federal data, about 63% of the approximately 4,200 children formally discharged from foster care in Oregon during our review period returned home to their parents or original caregivers. This success rate is better than the national average of 51%. The remaining children were discharged for other reasons, such as adoption, formal guardianships, or through aging out of the foster care system. Figure 10 shows the percent of children in foster care formally discharged in Oregon over the last five federal fiscal years compared to national averages.

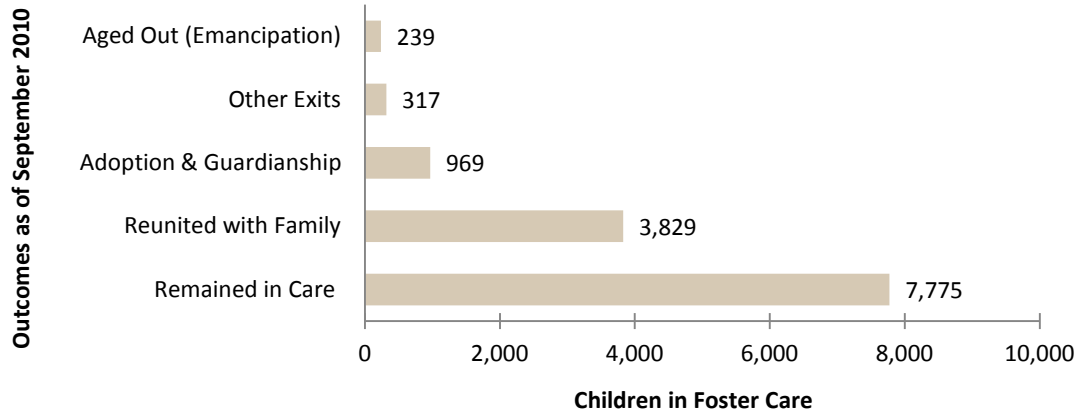
Figure 10: Children Exiting Foster Care Who Returned Home over the Last Five Federal Fiscal Years



The percentages above show only those children who were formally discharged from foster care. Some children return home before they are formally discharged. In these cases, physical custody is returned to the parents or caregivers while the court determines the appropriate time to grant full legal custody. When considering all children in foster care, including children returned home for a trial period, Child Welfare was successful in reuniting about 3,830 or 29% of the approximately 13,000 children included in our analysis. This success rate is also better than the national average of 22%.

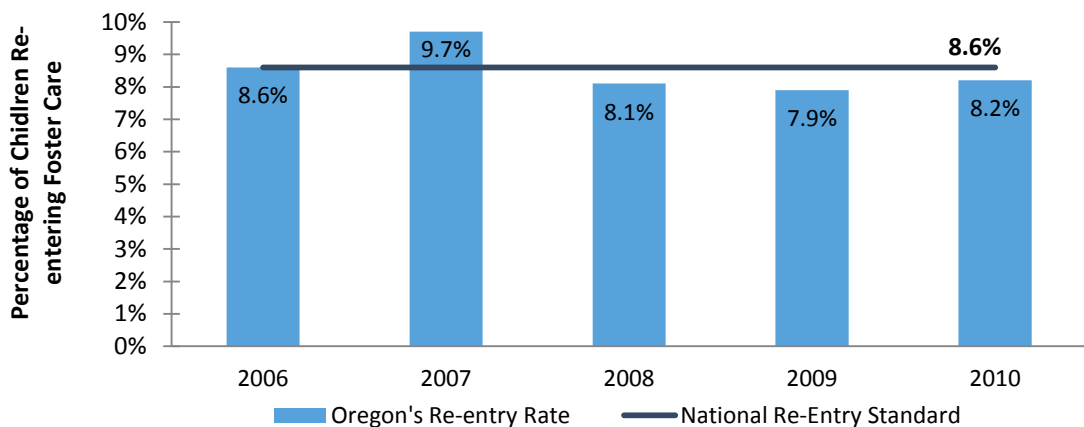
While the above rate reflects Oregon children who were returned home, a snapshot of all children in foster care provides a different picture. Most of the children in foster care during the period we reviewed were not able to return home. Of the more than 13,000 children in foster care, 1,500 children or 12% exited foster care in other ways such as through adoptions and guardianships. About 7,700 children or 59% were in foster care at the end of September 2010. Some of these children may eventually return home or be placed in a different permanent arrangement, such as adoption.

Figure 11: Outcomes for Children in Foster Care



Although Child Welfare tries to help children return home, its primary focus is to keep children safe. This is consistent with federal performance measures, which focus both on increasing the number of children who return home and decreasing the number of children who re-enter foster care. According to federal data, 8.2% of Oregon children who entered foster care during our review period had been discharged from foster care within the preceding 12 months. This re-entry rate is lower than the federal standard of 8.6%. Figure 12 below shows the re-entry rates in Oregon compared to the national standard for the last five federal fiscal years.

Figure 12: Re-entry Rates for last Five Federal Fiscal Years



Addressing Safety Concerns That Prevent A Child's Return Home

Child Welfare develops a document that outlines what parents must do for their children to return home, including the timeframes for completing services and a date on which the services and progress will be reviewed. The document is designed to help parents engage in services. Parents are not required to complete the services, but their children will not be allowed home if the safety threats that led to the children's removal are not addressed.

Children can return home when their safety can be managed using an ongoing in-home safety plan. Ongoing safety plans often use Safety Service Providers who are connected to the case, such as relatives, friends, or paid service providers. These people agree to help ensure and monitor a child's safety upon their return. If parents are able to demonstrate to the caseworker and court that they are addressing the safety threats, their child can be returned before they complete all services in the safety plan. There are times, however, when a parent cannot or will not take the steps necessary to get their child back. In those circumstances, other options, such as adoption, are considered.

Other groups and agencies are involved in decision-making and services

Parents and children are represented by attorneys during court proceedings. Parents' attorneys advocate for parents' wishes, while attorneys for children advocate for children's needs. Attorneys for children over the age of seven must also communicate the child's wishes to the court.

Child Welfare cases are also monitored by a Citizen Review Board. The Citizen Review Board seeks to ensure activities and plans meet children's needs and makes findings and recommendations for improvements to the court and to Child Welfare. A review by a Citizen Review Board happens every six months and can replace a regular 6-month court review.

In some cases, a child is also assigned a Court Appointed Special Advocate, or CASA, who advocates for the child's best interests. CASAs see children regularly, attend court hearings, and provide written reports and recommendations to the court.

Child welfare cases often involve an array of service providers, all of whom affect the return home process. Service providers can include substance abuse treatment counselors, mental health counselors for both parents and children, and parenting coaches. These providers interact with families on a regular basis and may provide reports to Child Welfare and the courts about parent and child progress. In some cases, service providers offer an opinion about whether parents and children are ready to be reunited.

Other important stakeholders include foster parents and Safety Service Providers. Foster parents can attend court hearings and be involved in case planning for the child.

Audit Results

The purpose of our audit was to identify challenges to returning children home to their parents or primary caregivers, and to identify improvements the Department of Human Services' Child Welfare Program (Child Welfare) can make to these efforts. We analyzed data on children who spent at least one day in foster care during the period October 2009 through September 2010, and reviewed case file information for a selection of children. Our analysis relied on data Child Welfare uses to analyze and report child welfare outcomes to the federal government. Though we took measures to confirm the data's reasonableness, we did not verify its accuracy.

During the course of this audit, we observed daily operations and conducted interviews in district offices in Marion, Multnomah, Washington, Lane, and Klamath Counties. This allowed us to gain a deeper understanding of the district office efforts to return children home.

Although the state has enjoyed some success in returning children home, increasing workloads and tight program funding threaten this success. We suggest some strategies for improvement, but we recognize that they fall short of resolving the challenges caseworkers face. We believe managers in Child Welfare need to continue to identify improvements that will address these challenges and help more children return home.

Challenges To Returning Children Home

Reuniting children is a difficult task

Caseworkers perform complicated and ambiguous work in a high-stress environment. They are consistently faced with difficult decisions, often without complete information, where the best choice is unclear and the wrong choice could have disastrous consequences. When balancing child safety, family integrity, and the risks of foster care, caseworkers may find themselves trying to ensure a child's wellbeing when there is no perfect option.

Families in the child welfare system often face multiple barriers to providing a safe home. For example, a case of neglect could also include parental substance abuse, mental health issues, and financial instability. In one case we reviewed, Child Welfare removed a child due to parental neglect. The mother was able to regain custody only after receiving residential drug and alcohol treatment, undergoing a psychological evaluation and counseling, and addressing housing issues through financial assistance from Child Welfare.

Although parents may distrust them, caseworkers must guide parents and caregivers through the various treatment settings that will help them address these obstacles. For example, a Marion County caseworker

helped a reluctant parent with planning finances, securing housing, engaging in counseling, and accessing substance abuse treatment. The parent successfully completed substance abuse treatment and later regained custody of her child.

If parents successfully engage in treatment, the caseworker must then assess whether safety threats have been removed to the point that a child can be safely returned home. At the same time, caseworkers must monitor and ensure the safety of the children in foster care, which can involve one family with several children living in separate foster homes.

Caseworkers are answerable to multiple people with diverse needs and perspectives, including parents, children, extended family members, attorneys, and judges. Although they have limited control over the actions of these people, caseworkers are held responsible for case outcomes and are subjected to public scrutiny if something goes wrong.

Caseworkers are regularly interrupted with serious crises during their regular tasks. Despite these challenges, caseworkers shared with us their personal satisfaction working to protect Oregon's children and helping heal broken families.

Caseworker expectations are increasing without additional resources

Caseworker resources are not adequate to perform the expected activities associated with their required workloads. A workload study performed in 2008 by an outside consultant suggests staffing levels are not consistent with the amount of work to be completed. The study found that caseworker resources fell 24% to 37% short of that required for high-quality casework. In budget materials for the 2011-2013 biennium, Child Welfare estimated that staffing levels would be at approximately 68% of required workload. Our observations in the district offices were consistent with the general conclusions of those studies.

Caseworker responsibilities have increased, which may contribute to the growing gap. Some of the increases in responsibilities are driven by policies within Child Welfare. For example, the caseworker procedural manual includes nearly 1,500 pages of tasks caseworkers must complete to help facilitate a child's return home, including both casework and administrative tasks.

In addition, caseworkers speak on behalf of Child Welfare in court hearings instead of Department of Justice attorneys. We were told the cost associated with having legal representation is one of the primary reasons for relying more on Child Welfare workers. This requires more caseworker time to prepare documents for court and to attend court hearings. One caseworker commented that certain judges routinely run behind schedule, forcing caseworkers to spend time in court waiting for their case to be heard.

To better meet federal information system requirements, Child Welfare implemented OR-Kids in 2011. While this new system has the advantage of consolidating information from multiple sources into one system, and capturing much more detailed data than the previous child welfare systems, it also has increased the level of documentation caseworkers must complete.

Other added requirements are driven by changes in state and federal laws and policies. While well-intentioned, some of these additional requirements may not help children safely return home and can significantly increase caseworker workload. For example, Oregon law requires caseworkers to provide detailed educational information to the courts, including all schools attended and progression towards high school graduation for older children. Also, since 2000, the federal government has passed 14 separate pieces of major legislation that affected the delivery of child welfare services. In addition to major legislation, other federal laws have added caseworker duties such as ensuring that older children in foster care understand their credit scores.

Limited Resources May Result In Less Children Returning Home

We learned that as a result of the increasing demands and resource issues, certain caseworker tasks deemed critical for successfully and safely returning children to their original homes were not occurring at adequate levels and, in some cases, were not occurring at all.

Supervised visits between children and their parents are less frequent than desired

Studies show frequent, high quality contact between parents and children improves the likelihood of children successfully returning home and may decrease the time to reunification. Visits help ease children's anxiety and trauma that may result from their removal, maintain the parent-child relationship and can provide motivation for parents to participate in required services. Hands-on coaching around visitation can also help parents practice positive parenting techniques.

Inadequate visits between parents and children can result in weaker attachments or a breakdown of the parent-child relationship. Parents who do not see their children may become disengaged in services and the relationship between the parent and caseworker may suffer as well. As a consequence, children may be delayed or prevented from returning home.

In all of the districts we visited, Child Welfare caseworkers and other stakeholders noted the amount and quality of parent-child visits was rarely adequate. Oregon Child Welfare policy does not specify the frequency or duration of parent-child visits. Child Welfare staff mentioned that most parents and children receive one supervised hour-long visit per

week. Hands-on parent coaching during these visits was not widely available.

Lack of resources appears to be the primary reason for inadequate visits. The 2010 workload study suggested that support staff responsible for providing transportation and supervision for visits between parents and children fell short of what was needed to complete high quality work. In addition, hiring freezes and mandatory furloughs also limited support staff's ability to supervise visits. Support staff also provide transportation and supervision for visits between siblings. In Multnomah County, we were told support staff are so busy with parent-child visits that they are unable to transport or supervise visits between siblings. As a result, caseworkers must arrange and supervise these visits.

Meeting space for visits is also an issue. Though research has found visits should ideally occur in comfortable surroundings for the parent and child that mimic family life, supervised parent-child visits mostly occur at the child welfare office during normal working hours. Some districts have an offsite visitation center, but they are often crowded, which may make it more difficult for parents and children to connect. Staffing and space limits also mean that most visits take place during regular business hours, which can be problematic for parents who are working or accessing intensive treatment services.

For some families, relatives or foster parents can supervise visits in the community. This may result in parents and a child seeing each other more often since Child Welfare does not have to provide transportation or supervision. However, visits in the community depend on the willingness of foster parents or relatives to transport and supervise the family. Moreover, if supervision is required, families are not allowed to visit unless an approved supervisor is present.

More can be done to engage and support parents and extended families

Building a strong support system around parents and children is essential to getting children home. Studies have shown parental engagement in services can increase the likelihood of children returning home. In one case, a woman's child was returned on a trial basis within a month of removal based on the mother's rapid engagement in residential drug and alcohol treatment. The mother then continued to engage in other services, including case planning and parenting classes, and eventually regained custody of her child. Family members, and other parental supports are also key components to getting children in foster care back with their parents or caregivers. For example, in one case, the extended family held a meeting to discuss how they could help a mother remain clean and sober so that her child could safely return home. In another case in Lane County, friends of a family whose children were removed became certified as foster parents and allowed visits in their home while the children were in their care.

Child Welfare emphasizes three practices to encourage parent engagement. The first practice involves family decision meetings that include everyone involved in the child's case (e.g. parents, providers, extended family, and caseworkers) to help identify workable strategies to address the safety threats that led to the child's removal. The second practice focuses on developing and documenting parent and caregiver commitments to participate in certain activities within specific timelines that are directed towards removing safety threats. The third method relies upon frequent face-to-face meetings between caseworkers and parents or caregivers.

Child Welfare literature supports that engaging family members, including parents, in service and treatment planning, and conducting frequent face-to face meetings between parents and caseworkers can successfully increase parent engagement. However, we found many of these practices were not occurring on a regular basis. For example, we found 26 of the 81 applicable cases we reviewed did not have an Oregon Family Decision meeting. Though caseworkers are required to consider holding Oregon Family Decision meetings for children in foster care for more than 30 days, we found that they did not always do so. Also, though we found caseworkers were routinely conducting Child Safety Meetings, which are also encouraged, several caseworkers we interviewed stated parents were not always included in their child's safety planning since safety plans were generally prepared prior to the meeting. Further, many caseworkers also told us they did not hold any other family decision meetings, which could help solidify parent engagement.

We also found that Action Agreements, a required form that the parent or caregiver completes and signs, were not completed in 20 of the 91 cases in which they were required. In addition, while we found Action Agreements in 71 cases we reviewed, 22 of these were not signed by a parent, and in some cases there was no date to indicate the form was reviewed with the parent or caregiver. Action Agreements are important because they describe parent and caregiver commitments, including timeframes for completion. These agreements may include court-ordered and other services, such as parent-child visits and visits with the caseworker.

Although Child Welfare policy requires caseworkers to have face-to-face contact with parents every 30 days, the program's performance indicators show these contacts occurred only 62% of the time during our review period. Face-to-face visits are considered important because they allow the caseworker to monitor changes in the family, assess parents' ability to protect their child, and make adjustments to the case plan interventions when needed.

Lack of resources limit parents' ability to address mental health, drug, alcohol, and housing issues

Addressing safety barriers is important to reuniting families, but needed treatment services are not always available. Limitations in substance abuse, mental health, and housing services can mean treatment is unavailable or does not meet parents' needs. As a result, children may be delayed or prevented from returning home. Also, in smaller communities the breadth of services may not be adequate to address parents' specific needs. For example, Klamath Falls is lacking services for parents with both substance abuse and mental health issues. Although larger communities offer a wider range of options, parents in these communities can face long waiting lists for services. This is particularly problematic with drug and alcohol treatment, especially intensive residential treatment.

Access to mental health services is also limited. Many families in the child welfare system do not have health insurance and some parents lose eligibility for the Oregon Health Plan when their children are removed. Although some parents have severe mental health problems, state budget limitations prevent Child Welfare from paying for uninsured parents' mental health services, particularly parents with long-term mental health treatment needs. Even in larger communities, caseworkers struggle to identify affordable mental health providers able to address the complex mental health issues affecting parents. Resource limitations also make it difficult for parents and caseworkers to address families' housing needs. Affordable housing is limited and parents with certain criminal histories experience even more limitations for public housing. In addition, some housing programs require that parents have their children living with them prior to moving in. Since a parent must be able to demonstrate a safe living arrangement exists before a child can be returned to them, this housing program requirement can be especially challenging for a homeless parent.

Practices That May Improve District Performance

Practices we observed that could benefit other districts

Our review of 2010 data identified some significant variances in return home rates among Child Welfare's 16 districts. For all children who spent at least one day in care between October 1, 2009 and September 30, 2010, the rate of children returning home ranged from 23% to 39%. Among highly-populated districts, return rates ranged from 23% to 33%. The districts with the fewest children in care, primarily in central and eastern Oregon, had return home rates that ranged from 28% to 39%. The highest return home rate (39%) was in the district encompassing Klamath and Lake Counties.

We observed day-to-day operations in 5 districts during the course of this audit and noted practices that, if explored further, may increase return

home rates. Given the significant gap between staffing resources and workload needs, these fall short of resolving the challenges that caseworkers face. However, they do have potential to improve performance. For example, the Marion district office features a specialized permanency training unit. New permanency workers spend up to a year in this unit where they receive peer mentoring and extended casework training. This additional training and mentoring appears to have a positive effect upon casework and the ability to return children home.

Washington, Marion, and Klamath/Lake Districts have several specialized positions to assist caseworkers. Both the Klamath/Lake and Washington districts assign dedicated caseworkers to attend court hearings and handle the legal aspects of cases until Child Welfare is granted permanent custody of the child. The Marion and Multnomah Child Welfare branches have dedicated drug and alcohol coordinators who handle referrals to and correspondence with Drug and Alcohol treatment facilities. Multnomah branches feature onsite substance abuse assessments as well as outreach and mentoring for clients receiving drug and alcohol treatment. Most of these staff do not carry cases, but instead complete casework that caseworkers would otherwise have to perform.

Klamath County has a family visitation center located away from the Child Welfare offices. Research suggests this provides a less stressful environment and is more conducive to quality visits between parents and children. In Klamath County, the visitation site also has onsite full-service drug and alcohol treatment, and the visitation center coordinator serves as a liaison between drug and alcohol treatment providers and caseworkers. This streamlines services to parents and eases communication between substance abuse counselors and Child Welfare caseworkers.

Klamath County's juvenile court system also holds more frequent review hearings on cases and routinely orders Action Agreements in court. While the frequent hearings create additional workload for caseworkers, the frequent hearings and court-ordered Action Agreements increase accountability over both parent and caseworker efforts.

Other practices could improve district performance

In a field such as Child Welfare where decisions are complex and the quality of caseworker efforts is essential to positive outcomes, staff performance appraisals help ensure employees develop and improve their casework skills. Employee performance management can also help identify staff priorities and align those priorities with those of the organization, thereby encouraging both organizational learning and more consistent results.

Though required, we found neither the local managers nor supervisors we interviewed routinely performed performance evaluations of the staff they oversaw. Child Welfare management has recently stressed the importance of evaluations by actively participating in and promoting the

newly implemented Performance Feedback Model. Approaching evaluation as a tool for learning, including management support of employee growth and success could increase organizational effectiveness and efficiency.

While support staff could help ease caseworkers' high workload, support staff capacity is currently limited. In addition, the amount of work a support staff member can perform is limited by their ability to update the new OR-Kids system. Unlike the previous Child Welfare information system, OR-Kids restricts access to some documentary tasks to the assigned caseworker. Central management stated this change was made to ensure activities were documented timely; however the increased tasks reduce caseworkers' available time which could be directed towards contact with children and their families.

More Central Support For District Efforts

Child Welfare service delivery is administered by branch and district managers who meet monthly as a group with central managers. District managers also meet informally with central management to discuss performance measures. However, central management provides limited guidance and direction to districts directed towards returning children home.

More assistance from central management needed

Child Welfare policies and procedures are established by central management in Salem with the expectation that district managers are responsible for implementation. The Protective Services, Foster Care, and Adoptions Programs each have at least one program manager in Salem who assists districts in implementing central management's policies. While these managers provide limited support related to returning children home, there is no central program manager dedicated to this purpose. According to management, there was a program that handled these duties at one time, but the program was eliminated about 14 years ago in response to federal legislation.

Central management also provides some support and guidance to districts through hired consultants who provide hands-on training and advice in districts. However, the number of consultants is insufficient to adequately serve all the Child Welfare needs in the districts. Greater central management presence in the districts, through dedicated advisors and a central program manager, could facilitate communication among districts regarding effective practices that can improve performance.

Central management could better support improvements

Without dedicated central direction and guidance from advisors, it is difficult for central management to observe and effectively address the challenges workers face in returning children home. In addition, central

management has not adequately considered district practices to ensure that required activities add value to getting children home.

Evaluating program effectiveness helps managers understand the relationship between processes and outcomes and is key to continuous improvement. Such evaluations, which do not need to be large formal efforts, can be particularly important when instituting new procedures or practice models, such as the Oregon Safety Model.

Several caseworkers mentioned that their failure to use Action Agreements or perform Family Decisions meetings reflected a belief that these tools were ineffective. For example, some caseworkers felt information covered in the Oregon Family Decision Meetings, required by statute, was also covered in the Child Safety Meeting, which in their eyes made the former unnecessary. Others felt the Child Safety Meeting, which is generally held within 30-60 days of a child's removal from home, is ineffective because at this point permanent custody may not have been granted to Child Welfare. Thus, parents acting on the advice of their attorneys may not want to share information to prevent revealing something that might be used against them in court. As another example, some caseworkers told us the Action Agreements required by the Oregon Safety Model were difficult for parents or caregivers to understand, so the caseworkers sometimes use an alternative form, such as a letter or list of required services.

Without sufficient direction and evaluation, central management does not know how practice models are implemented by field staff. In the case of the Oregon Safety Model, central management may not know which aspects of the model are vital to returning children home and which processes would benefit from modifications.

Strengthening direction and evaluation activities may also help central management identify areas where caseworkers need more guidance or training. For example, some caseworkers told us they needed more guidance in order to consistently implement the Oregon Safety Model.

Further, increased direction and process evaluation would provide central management with a clearer perspective of the challenges districts face and the strengths and weaknesses of the practice model. Central management has expressed a need for better direction and evaluation, but stated resources are not available to address the deficiency and pointed out that position allocations within Child Welfare are decided by the Oregon Legislature.

Set priorities to address casework challenges

While central management developed a comprehensive manual detailing caseworker expectations, it has not addressed the problem of insufficient staffing. Despite an initial effort to set priorities among tasks, central management told us it was difficult to set priorities since all tasks are considered important and some are mandated by statute. For federal

requirements, non-compliance could result in lost federal revenue. Central management staff also told us they have tried over the past two years to work with district staff to set priorities, but district staff cannot agree on what the priorities should be. Further, central management told us that due to the unique circumstances in every case, prioritization is best handled by the caseworker and their supervisor. However, identifying the priorities most essential to keeping children safe, and when appropriate, helping them return home, can guide supervisors and caseworkers when it is impossible to meet all requirements. Identifying priorities can also help central management communicate to Oregon Legislators the competing priorities for caseworker time that result when they introduce or amend legislation.

Because caseworkers have a longer list of requirements than they can consistently complete, they decide on their own which tasks to perform. For example, we learned that caseworkers can feel the need to fulfill documentation requirements rather than spending time with parents and children. Because these decisions are not easy to make, management should accept some of the burden of deciding which tasks are essential and acknowledge that some activities are not. Several staff mentioned they do not have the time to adequately serve their families and are concerned about adverse effects on the children they are charged with protecting. Lack of prioritization not only places the caseworker at risk, but also Child Welfare should a child within the program's custody or returned to their parents or caregivers suffer continued abuse.

Federal Funding Does Not Align With Federal Goal

The current federal funding mechanism is not in alignment with Federal and State goals to return children to their homes. Federal funds are made available to states to cover the costs of children in foster care, but the states are expected to fund the services to remove the safety barriers that would allow the children to return home. The Federal government does provide some funding to address the barriers, but those dollars are limited in comparison to the total amount available for foster care. As a result, limited federal funding is available for services that address family preservation and reunification, such as parenting classes and home visiting services.

Budget pressures in recent years have limited Child Welfare staff and services. For example, mandatory furloughs and hiring freezes have affected both caseloads and the time available to complete work. Recently, DHS has also refocused funding and staff on efforts to strengthen families to prevent the need to remove children, but this came at the expense of resources that help children in foster care return home.

Recommendations

We recommend that Child Welfare district offices and branches share locally-developed practices or systems that support caseworkers, create efficiencies, and develop caseworker skills.

We recommend the Department of Human Services Child Welfare Program:

- Evaluate and set priorities among the expected caseworker duties contained in their Child Welfare procedures manual.
- Routinely gather and share potential best practices among districts.
- Consider assigning a program manager dedicated to returning children home at the central office to provide better direction and support to enhance caseworker practices. The manager's responsibilities could also include working with other Child Welfare Managers to evaluate and set priorities among current return home practices and ensure best practices are distributed among districts.
- Continue with efforts to implement a policy of annual employee performance evaluations to encourage professional development, improve working environments, and better achieve the program's mission.
- Evaluate whether support staff could help alleviate caseworkers' workload burden by providing more assistance on administrative tasks. This should include determining if support staff need additional, but adequately controlled access to the program's OR-Kid system.

We recommend federal reconsideration of current funding practices to determine whether alignment with the federal goal of returning children to their families would produce better outcomes.

Objectives, Scope and Methodology

The objectives of our audit were to identify challenges to returning children home to their parents or primary caregivers, and improvements Child Welfare management can make to better facilitate children's return home. We focused our efforts on reunification processes and did not include other Child Welfare practice areas such as foster home certification or adoptions.

To accomplish our objectives, we reviewed numerous documents related to Child Welfare's work such as their 2010 data book, dashboard measures and policy manual. We also reviewed applicable federal and state laws and administrative rules.

To gain an understanding of the challenges in the reunification process, we interviewed 14 staff from the DHS central office, 88 staff from 5 of the district offices and 16 stakeholders such as, County Judges, Court Appointed Special Advocates, the Oregon Foster Parents Association, and the Office of Public Defense Services. Additionally, we accompanied Child Welfare staff during foster care home certifications, hotline call screenings, and immediate response visits.

We analyzed Child Welfare data for the 13,129 children who spent at least one day in foster care between October 1, 2009 and September 30, 2010. The data included many pieces of case information including conditions associated with removals, date of birth and any disabilities the child had. Our analysis relied on data we obtained from the Child Welfare program. Though we took measures to confirm the data's reasonableness, we did not verify its accuracy.

As part of our analysis, we divided the population into two groups based on their status as of September 30, 2010. For the first group, we focused on children who remained in Child Welfare's care as of September 30, 2010; this group consisted of 7,775 children. For the second group, we focused on children who returned home to their parents or caregiver by September 30, 2010; this group consisted of 3,829 children. For each group, we performed various analyses to determine which factors and districts we wanted to use for our sample of on-site visits and case file reviews. The factors we chose for our sampling were the removal reasons of neglect, parental drug use, and inadequate housing. We also considered the length of a child's most recent episode in foster care, limiting our sample to children who spent at least one but no more than 24 months in foster care. As a result of our analyses, we sampled cases from District 2: Multnomah County, District 3: Marion/Polk/Yamhill Counties, District 5: Lane County and District 11: Klamath/Lake Counties. Due to time constraints, we tested a total of 100 cases from Districts 2, 3, and 5, and did not test any case files from District 11.

We conducted this performance audit in accordance with generally accepted government auditing standards. Those standards require that we plan and perform the audit to obtain sufficient and appropriate evidence to provide a reasonable basis for our findings and conclusions based on our audit objectives. We believe that the evidence obtained provides a reasonable basis for our findings and conclusions based on our audit objectives.



Oregon

John A. Kitzhaber, MD, Governor

Department of Human Services
Office of the Director
500 Summer Street NE, E-15
Salem, OR 97301-1097
503 947-5110
Fax: 503 378-2897
www.oregon.gov/DHS

April 17, 2012



Gary Blackmer, Director
Oregon Audits Division
255 Capital Street NE, Suite 500
Salem, OR 97310

RE: Department of Human Services Response to the *Child Welfare Program: Strategies to Help Caseworkers Reunite More Families*

Dear Mr. Blackmer:

Thank you for the opportunity to respond to the draft audit entitled, *Child Welfare Program: Strategies to Help Caseworkers Reunite More Families*. We appreciate the dedication and hard work of your staff the review required. In general, the Department of Human Services (DHS) agrees with your recommendations made in the draft report. Per your request, below is the department's response.

Recommendations:

We recommend that Child Welfare district offices and branches share locally-developed practices or systems that support caseworkers, create efficiencies, and develop caseworker skills.

We recommend the Department of Human Services Child Welfare Program:

- Evaluate and set priorities among the expected caseworker duties contained in their Child Welfare procedures manual.
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among current return home practices and ensure best practices are distributed among districts.

- Continue with efforts to implement a policy of annual employee performance evaluations to encourage professional development, improve working environments and better achieve the program's mission.
- Evaluate whether support staff could help alleviate caseworkers' workload burden by providing more assistance on administrative tasks. This should include determining if support staff need additional, but adequately controlled access to the program's OR-Kids system.

We recommend federal reconsideration of current funding practices to determine whether alignment with the federal goal of returning children to their families would produce better outcomes.

Agency Response:

As stated in the draft audit report, there are a number of competing demands on child welfare caseworkers as they navigate their day to day work with families. Other groups and agencies are involved in the decision making process that must be coordinated, and there has been an increase in the expected activities of a caseworker without adequate increases in resources. Child welfare is staffed at approximately 67% of the need given the current workload and there are tasks that go undone every day.

As also stated in the draft audit report, child welfare work is complex. Each family is unique and requires the expertise of the caseworker and supervisory support to craft the plan that will afford the best chance of success and reunification of the family. Despite this, Oregon returns children to their parents at a rate higher than the national average.

While Oregon has a state administered system, there is a differentiation of roles and duties between the Central Office child welfare staff and the field child welfare staff. The promulgation of rules and procedures, and the consultation that helps maintain fidelity in application of those rules and procedures is work done by staff in Central Office. The actual work with families occurs through state employees in 16 Districts around the state.

The department is in agreement with the recommendation that priorities need to be set among the expected duties contained in the Child Welfare procedures manual. Given the demands and expectations of the work and the current staffing levels,

prioritization is critical. The decisions regarding which tasks will be left undone must occur close to where the work with families is being done in order to take into consideration the uniqueness of the situations in each case. Caseworkers are required to have specific training to do their work and their expertise combined with the clinical supervision of their direct supervisor are needed to provide the case management that is required for families to be successful. It is in this relationship between a caseworker and their supervisor that the prioritization of work is done. A static list of priorities issued from Central Office will not serve families well and could leave children in unsafe settings. Each month at the District and Program Managers meetings, workload is an agenda item and there are a number of suggested areas where some changes in rule and procedure could result in workload reduction. Some have already been implemented and some will take longer to evaluate and implement. These meetings also provide a forum for the discussion between field managers and Central Office managers on practice innovations, efficiencies and caseworker skills assessments.

Potential best practices are also discussed at both the District and Program Manager meetings; however, there has not been a schedule for these conversations. In order to ensure a regular and timely discussion of innovations to practice, this topic will be added to the monthly meetings where District Managers and Child Welfare Program Managers meet jointly.

The department will continue these conversations and efforts and will be able to report to the legislature the progress made in this area.

The department recently implemented a change in the organizational structure of Central Office and focused all child welfare programs in one program area, the Office of Child Welfare Programs. Within this office, we are in process of repurposing resources we have to better align with the work in the field, including increasing our consultation resources focused on our return home practice. There is no additional program manager to dedicate solely to returning children home so this work will have to occur within the resources currently allocated, and will take some time. This will be especially challenging as the department takes steps to implement House Bill 4131. The department anticipates this work will be fully implemented by January 2013.

As stated in the draft audit report, the department has begun the implementation of the Performance Feedback Model. The implementation and evaluation of that model is an outcome measure on the department's Fundamentals Map as well as

the Child Welfare Fundamentals Map, and a topic of the department's and program's Quarterly Business Reviews.

In the development of the technology system that supports child welfare, OR-Kids, the documentation of activities done by the various staff that work with families was required to be entered by the individual that did the work. This resulted in an increase in the documentation activities of the caseworker that in the prior system, may have been entered by support staff. Because the OR-Kids system is a role based access system, support staff cannot enter material on behalf of the case worker. Since the implementation of OR-Kids, the department has been evaluating the design and actively looking for opportunities to improve on the design. One of these areas is the further evaluation of the role based assignments for entry of data. The department believes there are data entry activities that can be shifted back to support staff and is working to implement those changes.

Finally, the department is in agreement with the recommendation that the federal government align the funding for child welfare with the national priorities of safely reducing the number of children in the foster care system. Oregon has been involved in providing feedback on several proposals for federal finance reform for the child welfare system. As opportunity arises, the department will continue to participate in this national conversation.

Thank you again for the opportunity to address the recommendations included in the draft audit report. Please feel free to contact Lois Day, Child Welfare Director, Jerry Waybrant, Chief Operating Officer (COO) for Child Welfare and Self Sufficiency, or Dave Lyda, Chief Audit Officer for DHS and Oregon Health Authority (OHA), if you have any questions regarding this response.

Sincerely,



Jim Scherzinger,
DHS Chief Operating Officer

Cc: Erinn Kelley-Siel, Director, Department of Human Services
Jerry Waybrant, COO for Child Welfare and Self Sufficiency
Dave Lyda, Chief Audit Officer for DHS and OHA

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Audit Team

Deputy Director	William K. Garber, MPA, CGFM
Audit Manager	Sandra K. Hilton, CPA
Principal Auditor	Andrew M. Love
Staff Auditor	Kyle A. Rossi
Staff Auditor	Anna L. Plumb, MPP

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mail: Oregon Audits Division
255 Capitol Street NE, Suite 500
Salem, OR 97310

The courtesies and cooperation extended by officials and employees of the Department of Human Services during the course of this audit were commendable and sincerely appreciated.